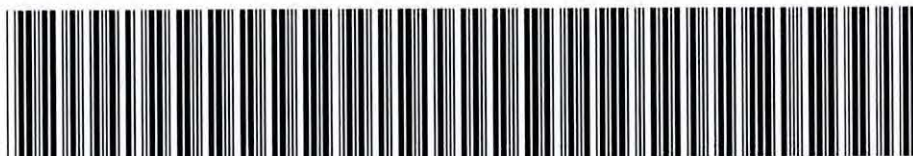


EWR D&I ANNOTATION



FAN-000001L094001DP497-5011

Artemis # : 000001L094001DP497

Record Created Date : 10/08/2010

Printed Date : 10/13/2010

Description : DI10-036. SEQ ID 497. 2009 Q4. THIS INCIDENT INVOLVES A 2006 SATURN ION. THE DRIVER STATES SHE WAS PULLING INTO A PARKING SPACE IN A PARKING GARAGE WHEN THE VEHICLE LUNGED FORWARD INTO A WALL. THE VEHICLE WAS GOING AROUND 5MPH AND SHE RECIEVED MINOR INJURIES. GM DENIES THERE IS A DEFECT. THERE IS NO POLICE REPORT GIVEN. VOQ-3. PURSUIT-0. RECALL-0. TSB-0. *RM

Print

Close



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

1200 New Jersey Avenue SE,
Washington, DC 20590

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

July 22, 2010

Ms. Gay P. Kent
General Motors Corp.
Mail Code 480-210-G11
30001 Van Dyke
Warren, MI 48090

NVS-217kb
DI10-036

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors Corp. (GM) in its light early warning report from 4th quarter of 2009. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents	
For Reporting Category: L	
For the following Sequence IDs: 5, 14, 39, 40, 41, 50, 65, 82, 119, 124, 126, 131, 136, 137, 143, 153, 154, 155, 180, 199, 212, 213, 214, 251, 260, 265, 281, 290, 307, 312, 313, 317, 323, 324, 331, 376, 416, 419, 444, 452, 473, 497, 499, 506	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the above table.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.



Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: “Document(s)” is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM’s custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM’s response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM’s assessment of the circumstances that led to the incident including GM’s analysis of the claim and/or notice regarding allegations of a defect.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, 1200 New Jersey Avenue, S.E., Washington, D.C. 20590. GM is required to submit two copies of the documents containing allegedly confidential information (except only one copy of blueprints) and one copy of the documents from which information claimed to be confidential has been deleted. Please remember that the words “CONFIDENTIAL BUSINESS INFORMATION” must appear at the top of each page containing information claimed to be confidential, and the information must be clearly

identified in accordance with 5 U.S.C. § 512.6. If you submit a request for confidentiality for all or part of your response to this letter, that is in an electronic format (e.g., CD-ROM), your request and associated submission must conform to the new requirements in NHTSA's Confidential Business Information Rule regarding submissions in electronic formats (49CRF 512.(c)). See Federal Register, volume 72, page 59434 (October 19, 2007).

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **August 27, 2010**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,

A handwritten signature in black ink that reads "Christina Morgan". The script is cursive and fluid, with the first name "Christina" and last name "Morgan" clearly legible.

Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement



GENERAL MOTORS LLC
Global Interior and Safety Center

AUG 27 2010

August 26, 2010

Ms. Christina Morgan, Chief
Early Warning Division, NVS-217
Office of Defects Investigation
National Highway Traffic Safety Administration
1200 New Jersey Ave., S.E.
Washington, DC 20590

NVS-217kb
DI10-036

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated July 22, 2010 regarding certain death and injury incidents reported by GM in its light vehicle early warning report from the 4th quarter of 2009.

GM's response is comprised of 44 disks for the incidents that are the subject of DI10-036.

Attachment "A" includes instructions for navigating the disk. Each disk, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 5 289630974-680730 and 2010 BUICK ENCLAVE. When the disk is launched, this identification number appears again along with all of the documents on the disk (including photographs and videos, if applicable) listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 6 289630974-680730_00_Request and Responses. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the Inquiry and Response in the index
for the disk are as follows:

DI10-036
5 289630974-680730
2010 BUICK ENCLAVE

Request for Information:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**



Response: See attached document.

2. **Provide a copy of the Police Accident Report.**

Response: See attached documents and photographs.

The remaining documents listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

5 289630974-680730_01_001- is the first document responsive to Inquiry no.1.

5 289630974-680730_02_001- is the first document responsive to Inquiry no. 2.

Your inquiries and our corresponding replies are as follows:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**

Response: See attached document.

The table below lists the incident that is the subject of DI10-006, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR) or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further.

(44 Vehicles from the Light Vehicle Template)			
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)		TYPE
5	5GALVBED0AJ		NISM
14	2G4WB52K931		NISM
39	1G6DT57V080		NISM
40	1G6DM577X80		NISM
41	1G6DU57V290		NISM
50	1G6KD57Y06U		NISM
65	1GYEE637590		PAR
82	KL1TG66626B		LIT
119	1G1AK58F187		NISM

SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
124	1G1AK58F287	NISM
126	1G1AS58H897	NISM
131	1GCDT136068	NISM
136	1G1YY26W885	NISM
137	2CNDL13F656	NISM
143	2CNDL53F896	NISM
153	3GNCA23B79S	NISM
154	3GNCA13B69S	NISM
155	3GNCA53V59S	NISM
180	2G1WT55N289	NISM
199	1G1ZS51F96F	NISM
212	1G1ZD5E70AF	NISM
213	1G1ZD5EB4AF	NISM
214	1G1ZC5E04A4	NISM
251	1GCEC19Y77Z	NISM
260	1GCEC19059E	NISM
265	1GBJK34J1YF	NISM
281	1GNEK13TX5R	NISM
290	1GNFK13088J	NISM
307	1GNDT13SX42	NISM
312	1GNDT13S442	NISM
313	1GNDT13S842	NISM
317	1GNDS13S742	NISM
323	1GNDT13S452	NISM
324	1GNDS13S052	NISM
331	1GNDT13S462	NISM
376	1GKDT13S662	NISM
416	1GKFK66877J	RUMOR
419	5GTDN13E478	NISM
444	1G2ZG58N074	NISM
452	1G2ZG57N494	NISM
473	1G2MN35B49Y	NISM
497	1G8AL55F76Z	NISM
499	1G8AJ55F27Z	NISM
506	1G8AJ55F17Z	NISM

2. Provide a copy of the Police Accident Report.

Response: If available, see attached document(s) and photograph(s) on the enclosed disk(s).

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: GM opts not to respond.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators and engineers working at the request of attorneys). GM is producing responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,

A handwritten signature in black ink, appearing to read "M. Carmen Benavides". The signature is fluid and cursive, with the first letters of the first and last names being capitalized and prominent.

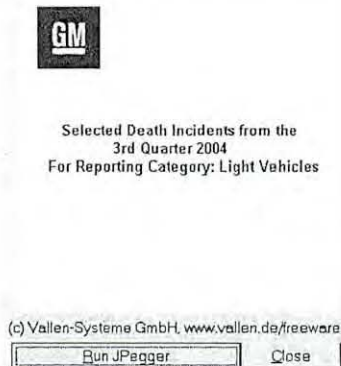
M. Carmen Benavides
Director, Product Investigations
and Safety Regulations

Enclosures: 44 Disks
Attachment A

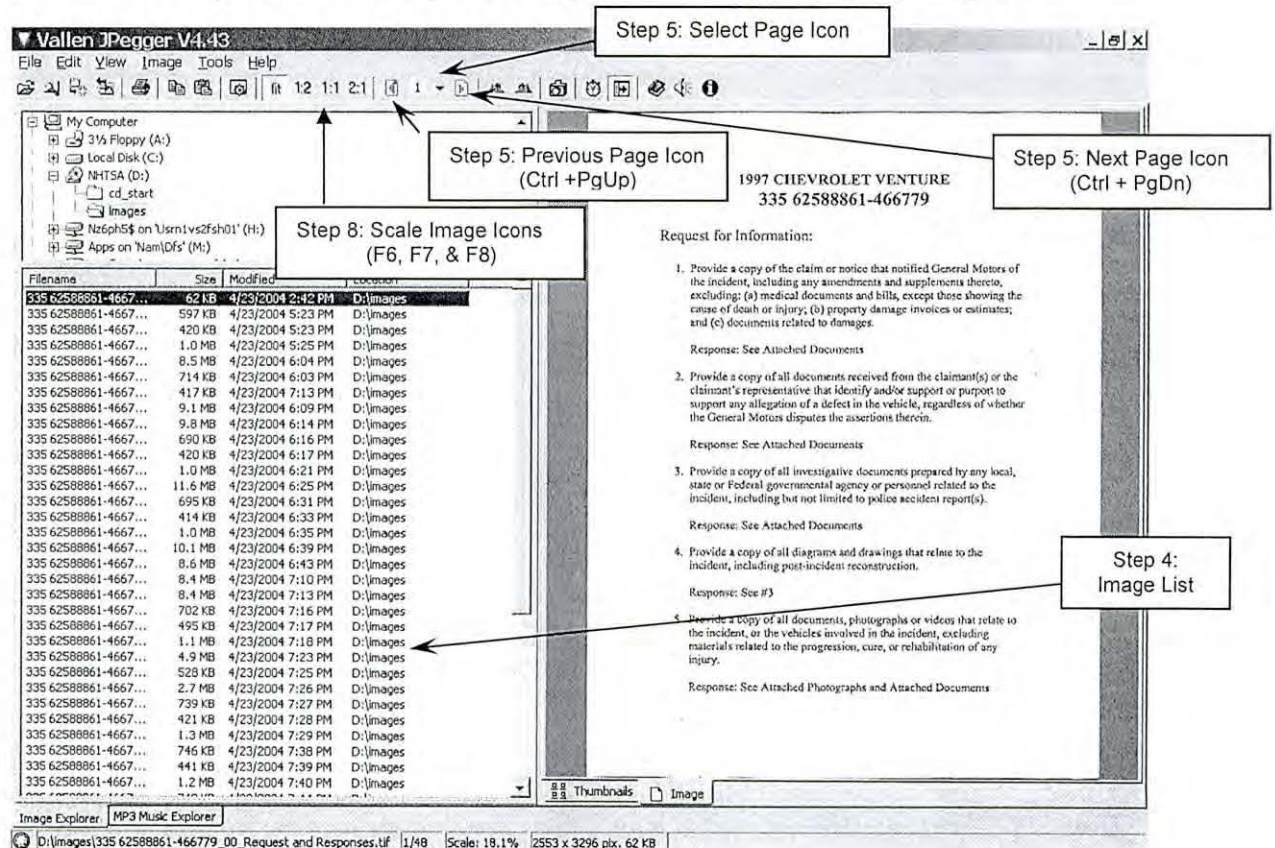
Attachment A

Instructions for using Disk Viewer

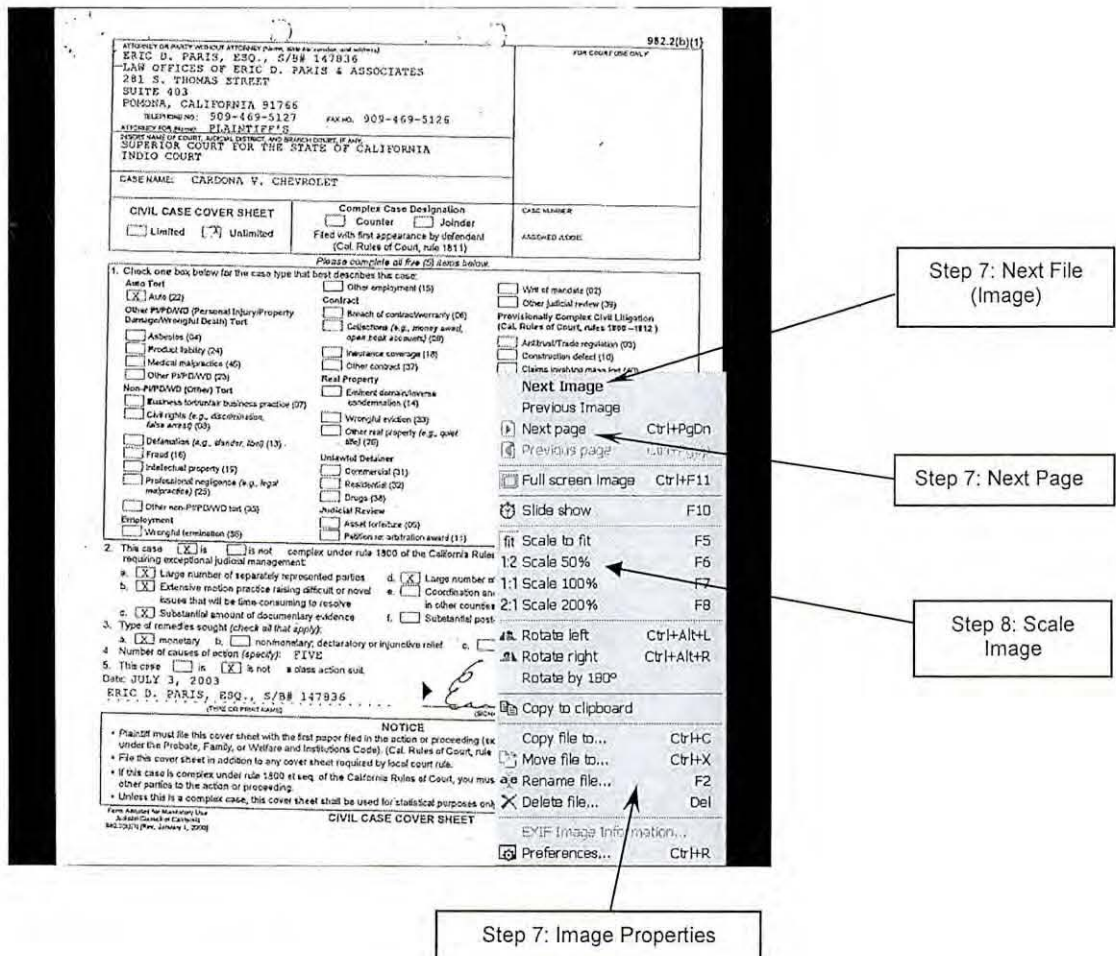
1. Insert the disk into the disk ROM drive; the disk will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.



5. Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl + PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl + PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages.)
6. By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl + PgDn** or **Ctrl + PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
7. Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next Page), or to view the next document within the file list (Next Image).
8. If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7** and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.



DI10-036
497 289630978 – 680734
2006 SATURN ION

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: See Attached Document. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

.

Service Request Detail

SR No. (b) (6)	Ref No.	Goodwill	No Goodwill Offered	BRC Type	PAR
Account	Site	GW SubType		Bus. Unit	BRC
Last Name	First Name	Approval	Not Initialed	Area	PAR
Daytime #	Evening #	UCC	Engine - Throttle Linkage/Pedal	Sub-Area	Initiale PAR- Collision
Address	City Parsippany	Involved Dir		Safety	Yes
State NJ ZipCd	Con Acct	Source	Phone	Updated	11/13/2009 12:16:15 PM
Serial #/VIN 1G8AL55F76Z	Model Year 2006	Priority	Medium License # SATURN -	Owner	AMSTUTST
Make Saturn - GM	Warr. Start 02/25/2006	Status	Open	Opened	11/6/2009 02:57:35 PM
Model ION 3	Mileage 29000	Sub-Status	Dissatisfied	Closed	
Abstract accelerator, throttle					
Customer Description	PAR FILE, DO NOT ADVISE, DO NOT ASSUME, SEND ALL CALLS TO X41022				

Pre-PAR

PAR Notified	11/13/2009 09:20:22 AM	Y	0	1	Concrete	Dry	N/A	N/A
Owner								
Driver/Last Name	John	First Name	John	Height	67	DOB	none	
Insurance Agent/Last Name	John	First Name	John	Phone	(873) 418-7040	Insurance Agency	Geico Insurance	
Incident Loc	Hyatt Parking Garage in Morristown, NJ				Incident Desc	was putting into a parking space, the veh lunged and collided with the wall, cust was taken to the ER by ambulance		
Component	throttle, brakes				Damage Desc	front end damage		
Vehicle Loc	at cust residence				Add'l Info	n/a		
Emgcy Svc Names	N/A				Main Loc	Saturn Dealer in Danville, NJ		

PAR Detail

Collision	Y	Non Collision	Property Damage	N	Thermal Evt	N	Spec Equip	none
Vehicle Speed	5	Weather Condition	dry	Prop Owner	n/a	Property Type	n/a	
Last Service Date		Loc Last Service		Property Location	n/a	Prop Est Repair Cost	\$0.00	
Veh Est Repair Cost	\$2,000.00	Spec Equip Installer	n/a	Prop Damage Description	n/a	Inspection Date/Time		
Primary Veh Use	Personal	Inspection Type	Accelerator/Throttle Systems	Inspected By	Inspection Not Performed	Inspection		
Veh Damage Description	front end damage			Explain Other	sent to ESIS, last svc done at Jiffy lube, exact date unknown			

Service Request Detail

PAR Injuries

Last Name	First Name	DOB	Location	Phone #	Seating Position	Restraint Type
		01/22/47	Occupant of Owner's Vehicle		Driver	Seatbelt
Injury Description		Medical Role	Treatment Location	Treated By		
bruised sternum, soreness, bruising		153477	Morristown Memorial Hospital-Morristown, NJ	Unknown		
Street Address		City	State	Zip Code		
		Parsippany	NJ			

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/13/2009 12:16:29 PM	MARTIRAM	ESISBIQU	Escalation	ESIS - Insurance Involvement	In Progress		ESIS - Insurance Involvement

Contact Last Name	Contact First Name	Account	BAC Code
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Comments: Insurance Involvement - Gelco Insurance, Claim # [REDACTED] Claim Rep John Gardner, Phone # (973) 418-7040, claim made and pending.

Ramiro Martinez/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/13/2009 10:07:59 AM	GARCIAJR	MARTIRAM	Notify CRM		Done	11/13/2009 12:16:28 PM	ESIS - Insurance Involvement

Contact Last Name	Contact First Name	Account	BAC Code
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Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/12/2009 01:41:35 PM	AMSTUTST	AMSTUTST	Scheduled Follow-up		Scheduled Alarm		check for ESIS pick up

Contact Last Name	Contact First Name	Account	BAC Code
-------------------	--------------------	---------	----------

Comments: check for ESIS pick up, if not done resched for wednesday

THIS IS NOT A SCHED CALL BACK, DO NOT ADV CUST OF THIS SCHED ACTIVITY. DIRECT ALL INQUIRIES TO OGRS STACY AMSTUTZ @ X41022

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/12/2009 01:33:47 PM	AMSTUTST	GARCIAJR	BRC PAR	ESIS- Injuries	Done	11/13/2009 10:07:58 AM	Injuries, Insurance Involved

Contact Last Name	Contact First Name	Account	BAC Code

Comments: driver was pulling into a parking space, the veh surged forward and collided with the parking garage wall. cust feels the veh should not have surged, and the brakes should have stopped the veh
cust was injured. Insurance is repairing the veh

Received and assigned for ESIS escalation.

Joe GATX/Workflow Par

Confidential Comments:

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/12/2009 01:27:50 PM	AMSTUTST	AMSTUTST	Ownership Changed	Ownership Escalated to BRC	Done	11/12/2009 01:27:50 PM	Ownership Escalated to BRC

Contact Last Name	Contact First Name	Account	BAC Code

Comments:

Confidential Comments:

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/12/2009 01:16:34 PM	AMSTUTST	AMSTUTST	Outbound Call Customer	Made Contact	Done	11/12/2009 01:33:44 PM	

Contact Last Name	Contact First Name	Account	BAC Code

Comments:
CRS adv: calling for additional info on veh and incident

cust sis: was pulling into a parking space, the veh lunged and collided with the wall, cust was taken to the ER by ambulance for a bruised sternum
there was no damage to the wall that the customer collided with, the insurance is currently paying for repairs, which are estimated at about \$2000.00.
there is no involved dir.

CRS adv: we will need to forward this file to ESIS for further handling, someone from that dept will be in contact with cust within 10 business days. If no contact in 10 business days cust can call CRS for new agent info

StacyAmstutz/ATX/PAR

Confidential Comments:

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/11/2009 11:48:37 AM	AMSTUTST	AMSTUTST	Scheduled Outbound Call	Cust	Done	11/12/2009 01:16:30 PM	

Contact Last Name	Contact First Name	Account	BAC Code

Comments

get veh and incident info

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/11/2009 11:48:18 AM	AMSTUTST	AMSTUTST	Outbound Call Customer	Left Message	Done	11/11/2009 11:48:14 AM	

Contact Last Name	Contact First Name	Account	BAC Code

Comments

CRS adv: calling for additional info on veh and incident
left SR# and CRS#

StacyAmstutz/ATX/PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/10/2009 12:47:12 PM	AMSTUTST	AMSTUTST	Scheduled Outbound Call	Cust	Done	11/11/2009 11:43:13 AM	

Contact Last Name	Contact First Name	Account	BAC Code

Comments

get veh and incident info

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/10/2009 11:52:13 AM	AMSTUTST	AMSTUTST	Outbound Call Customer	Left Message	Done	11/10/2009 11:53:52 AM	

Contact Last Name	Contact First Name	Account	BAC Code

Comments

get vm

StacyAmstutz/ATX/PAR

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/10/2009 11:51:22 AM	AMSTUTST	AMSTUTST	Inbound Call Customer	Voice Mail Received	Done	11/10/2009 11:51:56 AM	cust called in

Contact Last Name	Contact First Name	Account	BAC Code

Comments:

sorry you missed me, i will be at my desk till about noon, if you can give me a call that would be great

StacyAmstutz/ATX/PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/10/2009 10:31:46 AM	AMSTUTST	AMSTUTST	Scheduled Outbound Call	Cancelled	Done	11/10/2009 12:47:05 PM	

Contact Last Name	Contact First Name	Account	BAC Code

Comments

get veh and incident info

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/9/2009 03:34:51 PM	AMSTUTST	AMSTUTST	Scheduled Outbound Call		Done	11/10/2009 10:30:04 AM	

Contact Last Name	Contact First Name	Account	BAC Code

Comments

do cust initial

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/9/2009 03:05:23 PM	AMSTUTST	AMSTUTST	Other		Done	11/9/2009 03:05:45 PM	AS400 search

Contact Last Name	Contact First Name	Account	BAC Code

Comments

VIN also not found on AS400

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/9/2009 02:21:27 PM	KINZERTH	AMSTUTST	Ownership Changed		Done	11/9/2009 02:21:27 PM	Service Request Ownership has changed FROM: CUNNINJO TO: AMSTUTST

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/9/2009 02:20:50 PM	KINZERTH	AMSTUTST	BRC PAR	Initial Contact- AVM	Done	11/9/2009 03:32:03 PM	Called

Contact Last Name	Contact First Name	Account	BAC Code

Comments

call not required due to brand

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/9/2009 02:20:40 PM	KINZERTH	AMSTUTST	BRC PAR	Initial Contact- Dealer	Done	11/9/2009 03:08:28 PM	Called

Contact Last Name	Contact First Name	Account	BAC Code

Comments

no evidence that veh has been to dir in more than 2 years, no call necessary

StacyAmstutz/ATX/PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/9/2009 02:20:32 PM	KINZERTH	AMSTUTST	BRC PAR	Initial Contact- Phone	Done	11/10/2009 10:31:41 AM	

Contact Last Name	Contact First Name	Account	BAC Code

CRS adv: calling for additional info on veh and incident
left SR# edn CRS#

StacyAmstutz/ATX/PAR

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/9/2009 02:20:24 PM	KINZERTH	AMSTUTST	BRC PAR	Acknowledgement	Done	11/9/2009 03:34:48 PM	
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

CRS adv: Calling to inform cust that we have received your file concerning your GM Veh.
Do you have a few moments to speak with me?

cust sts: yes, but I don't have any information with me, it would be better if you could call tomorrow around 10:30

CRS adv: okay, will attempt to do so

SlacyAmstutz/ATX/PAR

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/9/2009 02:20:16 PM	KINZERTH	AMSTUTST	Notify CRM		Done	11/9/2009 03:35:47 PM	File Assigned
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/9/2009 02:20:09 PM	KINZERTH	AMSTUTST	Research		Done	11/9/2009 02:54:27 PM	Research VIN 1G8AL55F762
Contact Last Name	Contact First Name	Account	BAC Code				

Comments

VIN does not show up in GMVIS or GWM
no other files on vin or last 8 of vin

SlacyAmstutz/ATX/PAR

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/9/2009 02:19:54 PM	KINZERTH	AMSTUTST	BRC PAR	Case Assigned	Done	11/9/2009 02:49:27 PM	Assigned to Stacy Amstutz x41022

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/9/2009 02:19:41 PM	KINZERTH	CUNNINJO	SR Opened	Customer Called	Done	11/9/2009 02:19:41 PM	SR in Status of Closed has been Re-Opened by KINZERTH

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/9/2009 02:19:39 PM	KINZERTH	CUNNINJO	SR Closed - Satisfied	Customer Called	Done	11/9/2009 02:19:40 PM	Service Request has been Closed Satisfied.

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/9/2009 04:28:27 PM	TORRESJO	CUNNINJO	Notify CRM	Customer Called	Done	11/9/2009 02:00:15 PM	Cust called with diffent number

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Cust called to give diffent contact number

Already updated

JoshTorres/SCAC/ATX/Lv0

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/8/2009 04:24:45 PM	TORRESJO	TORRESJO	Inbound Call Customer	Customer	Done	11/8/2009 04:26:24 PM	Cust called w/ diffent number

Contact Last Name	Contact First Name	Account	BAC Code

Comments
Cust called in n/w different contact number

Josh Torres/SCAC/ATX/Lv0

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/8/2009 03:41:27 PM	CUNNINJO	KINZERTH	Escalation	Initiate PAR	Done	11/8/2009 02:19:29 PM	Assigning activity to PAR QUEUE

Contact Last Name	Contact First Name	Account	BAC Code

Comments
CRS advised that a person from the PAR Department will contact the customer within 2 business days

Scott Cunningham/SCAC/ATX/Tierlv0

Received and assigned in PAR
Thaddeus Kinzer/PAR Workflow/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
11/8/2009 02:57:42 PM	CUNNINJO	CUNNINJO	Inbound Call Customer	Complex Request	Done	11/8/2009 03:41:25 PM	Vehicle suddenly lunged forward—Par Case

Contact Last Name	Contact First Name	Account	BAC Code

Comments
Cust sts. she had an accident on Tuesday when the vehicle was pulling into a space and the vehicle lunged forward into the front wall. The vehicle is at residence driveway. The vehicle has not been diagnosed. I pulled in slowly and the vehicle lunged forward and damaged front end in a parking garage in a hotel. CUST states that she has a bruised sternum from the seatbelt or steering wheel. She was in the ER because of injury.

Cust sts. to find out if the vehicle has any open recalls: Cust asks reimbursement on a 750 deductible from the insurance and she seeks to have that refunded or reimbursed by GM.

CRS adv. to Initiate Pre-Par

Scott Cunningham/SCAC/ATX/Tierlv0

Confidential Comments

Service Request Detail

UCC Information

UCC Code	Symptom	Description
J42	Unwanted Acceleration	Engine - Throttle Linkage/Pedal
H01	Inoperative	Brakes - General

GM Vehicle Inquiry System Summary

[Home](#) - [Summary](#) - [Claim History](#) - [Vehicle Build](#) - [Vehicle Component](#) - [Delivery Information](#) - [Dealer Information](#) - [Service Contract](#) - [Warranty Block](#) - [Branded Title](#)

[Help](#)

VIN :	1G8AL55F76Z
-------	-------------

VEHICLE INFORMATION

Merchandising Model :	ZAL69 -2006 ION 3 SEDAN AUTOMATIC	Warranty Start Date :	02/25/2006
BARS Order Type :	70 - RETAIL - STOCK		
Delivering Dealer :	N/A	Selling Source :	N/A
		Site Code :	N/A
		Business Associate Code :	N/A
Service Contract :	No	Branded Title :	No
Warranty Block :	No	PDI Status :	Open

REQUIRED FIELD ACTIONS

Vehicle Has No Current Record Of Outstanding Campaigns
--

SERVICE INFORMATIONAL ITEMS

Vehicle Has No Current Record Of Outstanding Service Information
--

ON STAR AND XM SATELLITE RADIO INFORMATION

OnStar Equipped	Yes	OnStar Status	Inactive	Refer to Help page for details or go to OnStar Online Enrollment (located on the "OnStar" tab in GM InfoNET) or (888)ONSTAR1 (888) 667-8271.	
XM Equipped	No	XM Radio ID	N/A	XM Status	N/A
					Refer to Help page for details or: www.xmradio.gm.ca or Dealer Hotline 1.877.GET.XMST (1-877-438-9677).

APPLICABLE WARRANTIES

Description	Effective Date	Effective Odometer	End Date	End Odometer
36/36000 BUMPER TO BUMPER LIMITED WARRANTY	02/25/2006	65 miles	02/25/2009	36065 miles
72/100000 SHEET METAL COVERAGE RUST THROUGH LIMITED WARRANTY	02/25/2006	65 miles	02/25/2012	100065 miles
96/80000 FEDERAL EMISSION CATALYTIC CONV. AND PCM	02/25/2006	65 miles	02/25/2014	80065 miles
96/100000 CALIFORNIA SELECT COMPONENT	02/25/2006	65 miles	02/25/2014	100065 miles
36/50000 CALIFORNIA EMISSIONS	02/25/2006	65 miles	02/25/2009	50065 miles

CLAIM HISTORY

Vehicle Has No Associated Claim History

CHECK HISTORY INFORMATION

Vehicle Has No Associated Check History Information.

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GM Vehicle Inquiry System

Claim History

[Home](#) - [Summary](#) - [Claim History](#) - [Vehicle Build](#) - [Vehicle Component](#) - [Delivery Information](#) - [Dealer Information](#) - [Service Contract](#) - [Warranty Block](#) - [Branded Title](#)

[Help](#)

VIN :

1G8AL55F76Z

CLAIM HISTORY

Vehicle Has No Associated Claim History

CHECK HISTORY

Vehicle Has No Associated Check History.

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GM Vehicle Inquiry System

Vehicle Build

[Home](#) - [Summary](#) - [Claim History](#) - [Vehicle Build](#) - [Vehicle Component](#) - [Delivery Information](#) - [Dealer Information](#) - [Service Contract](#) - [Warranty Block](#) - [Branded Title](#)

[Help](#)

VIN	1G8AL55F76Z
-----	-------------

VEHICLE BUILD

Merchandising Model :	ZAL69 -2006 ION 3 SEDAN AUTOMATIC		
Gross Vehicle Weight Rating :	1720 kg (3793 lb)	Order Number :	GBN390
Build Date :	10/04/2005	Build Plant :	16ZA

GMVIS is not the definitive source of GM Vehicle RPO information and is intended for service reference only. Should there be any questions about the vehicle's original build or RPO information please refer to the original vehicle invoice or window sticker.

OPTION CODES

AK5 - DR & PASS SEAT RESTRAINT SYSTEM	AR9 - DLXE FRT BKT SEAT
BBC - BODY COLOR APPLIQUES	B37 - FLOOR MATS FRONT & REAR
C60 - AIR CONDITIONING W/DUST & POLLEN FILTER	DG7 - PWR. REMOTE EXTERIOR MIRRORS
FE1 - SOFT RIDE SUSPENSION SYSTEM	FY1 - RATIO - 3.63
IJE - TRIM INTERIOR DESIGN	J41 - POWER BRAKE SYSTEM
K62 - 105 AMP GENERATOR	L61 - 2.2L 4CYL GAS ENGINE
MN5 - 4 SPEED AUTO TRANS	MX0 - MERCHANDISED TRANS AUTO PROVIS
NE1 - MA/ME/NY/VT EMISSIONS	NK5 - STANDARD STEERING WHEEL
NU3 - EMISSION SYSTEM CALIFORNIA	PFD - 16" MACHINED FACED ALLOY WHEEL
QLG - TIRE P205/55R16	RF5 - MERCHANDISED PKG SATURN
UE1 - ONSTAR SERVICE: INCLUDES 1 YEAR SAFE AND SOUND PLAN	UH8 - CLUSTER INST, COOL TEMP, TRIP ODOM, TACH
US6 - FIXED ANTENNA, PAINTED, RADIO	US9 - AM/FM 6 CD CHANGER WITH MP3 (REPLACES STD/OPT RADIO)
U79 - 4 COAXIAL SPEAKERS	VK3 - LICENSE PLATE FRONT FRT
V73 - VEHICLE STATEMENT USA/CANADA	52G - TAN
52I - LT NEUTRAL	6AA - SUSPENSION
63L - SPORT RED	63U - BERRY RED
7AA - SUSPENSION	8AH - SUSPENSION
9AH - SUSPENSION	

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Page 1 of 3 Pages		New Jersey Police Crash Investigation Report		☒ Reportable ☐ Non-Reportable ☐ Change Report	
1 Case Number (b) (6)		10 Crash Occurred On: 1 Speedwell Avenue		11 Speed Limit W	
2 Police Dept of Morristown Code 01		☐ At Intersection with ☐ Road Name ☐ Dir ☐ 12 Route No. ☐ Suffix ☐ 13 MilePost ☐ 18 Speed Limit			
3 Station/Project No Photo/ AR 09-1050		☐ Feet ☐ N ☐ E ☐ S ☐ W ☐ 17 Cross Road Name ☐ NB ☐ SB ☐ WB			
4 Date of Crash 11/03/2009 5 Day of Week Tuesday		6 Time (use 2400 hrs) 10:28 7 Municipality Code 1424 8 Total Killed - 9 Total Injured 1		19 Ramp ☐ From ☐ To ☐ 20 Route Name ☐ 22 Longitude	
10 Vehicle No. 1 14 Policy No. 148 23 Ins Code 148		53 Vehicle No. 1 54 Policy No. 148 55 Ins Code 148			
☐ Pedest ☐ Ped ☐ Pedalcyclist ☐ Resp to Emergency ☐ Hit & Run		☐ Pedest ☐ Ped ☐ Pedalcyclist ☐ Resp to Emergency ☐ Hit & Run			
16 Driver's First Name [REDACTED] Initial [REDACTED] Last Name [REDACTED]		29 Sex Female 30 Eyes 2		56 Driver's First Name [REDACTED] Initial [REDACTED] Last Name [REDACTED] 59 Sex [REDACTED]	
17 Number and Street [REDACTED]		37 Number and Street [REDACTED] 60 Eyes [REDACTED]			
18 City Parsippany State NJ Zip [REDACTED]		38 City Parsippany State NJ Zip [REDACTED]			
31 State NJ 32 Drivers License No. [REDACTED] 33 DOB 11/12 34 Expires 11/12		61 State [REDACTED] 62 Drivers License No. [REDACTED] 63 DOB [REDACTED] 64 Expires [REDACTED]			
15 Owner's First Name [REDACTED] Initial [REDACTED] Last Name [REDACTED]		65 Owner's First Name [REDACTED] Initial [REDACTED] Last Name [REDACTED]			
☒ Same As Driver ☐ Not Same As Driver		☐ Same As Driver ☐ Not Same As Driver			
36 Number and Street [REDACTED]		66 Number and Street [REDACTED]			
17 City Parsippany State NJ Zip [REDACTED]		67 City Parsippany State NJ Zip [REDACTED]			
38 Make Saturn 39 Model 4DR 40 Color Red 41 Year 2006 42 Plate No. [REDACTED] 43 State NJ		68 Make [REDACTED] 69 Model [REDACTED] 70 Color [REDACTED] 71 Year [REDACTED] 72 Plate No. [REDACTED] 73 State [REDACTED]			
44 VIN 1G8AL55F76Z 45 Expires 02/2010		74 VIN [REDACTED] 75 Expires [REDACTED]			
46 Vehicle Removed To ☐ Drives ☒ Left At Scene ☐ Towed ☐ Impound ☐ Disabled		47 Authority ☒ Owner ☐ Driver ☐ Police		76 Vehicle Removed To ☐ Drives ☐ Left At Scene ☐ Towed ☐ Impound ☐ Disabled	
78 Alcohol/Drug Test Given: ☒ No ☐ Yes ☐ Refused		79 Alcohol/Drug Test Given: ☐ No ☐ Yes ☐ Refused			
Type: ☐ Breath ☐ Blood ☐ Urine		Type: ☐ Breath ☐ Blood ☐ Urine			
Results: 0. % ☐ Pending		Results: 0. % ☐ Pending			
49 Hazardous Material On Board ☐ Spill ☐ Name or Placard No. [REDACTED]		79 Hazardous Material On Board ☐ Spill ☐ Name or Placard No. [REDACTED]			
50 Carrier No. ☐ USDOT ☐ Other [REDACTED]		80 Carrier No. ☐ USDOT ☐ Other [REDACTED]			
51 Commercial Vehicle Weight ☐ <= 10,000 lbs ☐ 10,001 - 26,000 lbs ☐ >= 26,001 lbs		81 Commercial Vehicle Weight ☐ <= 10,000 lbs ☐ 10,001 - 26,000 lbs ☐ >= 26,001 lbs			
52 Carrier Name [REDACTED]		82 Carrier Name [REDACTED]			

See Supplemental Diagram

131 Crash Description
Vehicle 1 was parking in the garage at 1 Speedwell Ave and when sh Driver 1 advised she was parking in the garage and when sh there did not appear to be any damage to the wall. She advised that but her doctor advised her she could still drive. She then advised she upon impact and requested medical treatment.

134 Damage To Other Property
Owner HQ Plaza Fisher Development Corporation 37 HQ Plaza Morristown, NJ 07960

141 Officer's Signature **[Signature]** 142 Badge No. **155** 143 Reviewed By **FILOMENO, VITO** Badge No. **111** 144 Case Status ☐ Pending ☒ Complete

	81	84	85	86	87	88	89	90	91	92	93	94	95	Names & Addresses of Occupants - If Deceased, Date & Time of Death
A	1	01	01	04	F	05	08	02	09	04	-	-	-	Colubra Sylvia 145 Harrison Road, Parsippany, NJ 07954
B	-	-	-	-	-	-	-	-	-	-	-	-	-	
C	-	-	-	-	-	-	-	-	-	-	-	-	-	
D	-	-	-	-	-	-	-	-	-	-	-	-	-	
E	-	-	-	-	-	-	-	-	-	-	-	-	-	

NJTR-1 (R3/06)

Police Copy

APPROVED

TA000106411

New Jersey Police Crash Investigation Report

Police Dept: MorristownCode: 01

Motor Vehicle Crash Description

Station: No Photo/AR 09-1050Case No: (b) (6)

(Refer to vehicle by number)

	Veh Occ	Pos In/Occ	Eject	Phys Cond	Age	Sex	Loc Inj	Type Inj	Ref Inj	Equip Avail	Equip Used	Bag Dept	Hosp Code	Names & Addresses of Occupants - If Deceased, Date & Time of Death
A	-	-	-	-	-	-	-	-	-	-	-	-	-	
B	-	-	-	-	-	-	-	-	-	-	-	-	-	
C	-	-	-	-	-	-	-	-	-	-	-	-	-	
D	-	-	-	-	-	-	-	-	-	-	-	-	-	
E	-	-	-	-	-	-	-	-	-	-	-	-	-	

1.35 Crash Description

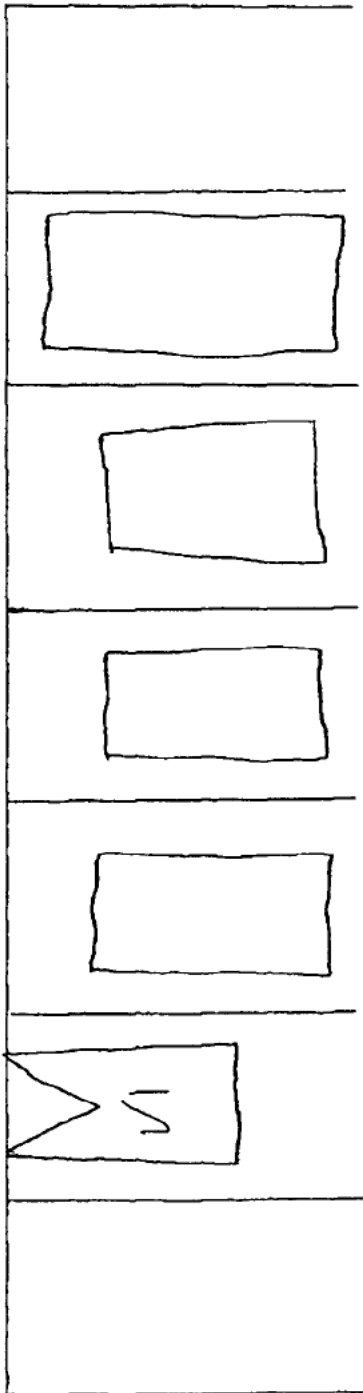
Morristown Ambulance Squad was dispatched and responded to the scene. They transported D1 to Morristown Memorial Hospital for treatment and evaluation.

155

New Jersey Police Crash Investigation Report Motor Vehicle Crash Diagram	Police Dept: <u>Montstown</u>	Code: <u>01</u>
	Station: <u>No Photo/AR 09-1050</u>	Case No: <u>(b) (6)</u>

134 Crash Diagram (NOT TO SCALE)

Parking Garage
for HQ Plaza
Level P1



[Handwritten Signature]

155

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96	Road Divided By 01 Barrier Median 02 Curbed Median 03 Grass Median 04 Painted Median 05 None																																	
97	Temporary Traffic Control Zone 01 None 02 Construction Zone 03 Maintenance Zone 04 Utility Zone 05 Incident Zone																																	
98	Light Condition 01 Daylight 03 Dusk 05 Dark (no street lights) 07 Dark (street lights on, spot) 02 Dawn 04 Dark (street lights off) 06 Dark (street lights on, continuous)																																	
99	Road System 01 Interstate 03 State/Interstate Authority 05 County 07 Municipal 09 Private Property 02 State Highway 04 State Park or Institution 06 Co Auth, Park or Inst 08 Mun Auth, Park or Inst 10 US Govt Property																																	
100	Road Character 01 Straight and Level 03 Straight at Hillcrest 05 Curve and Grade 02 Straight and Grade 04 Curve and Level 06 Curve at Hillcrest																																	
101	Road Surface Type 01 Concrete 02 Blacktop 03 Gravel 04 Steel Grid 05 Dirt																																	
102	Road Surface Condition 01 Dry 02 Wet 03 Snowy 04 Icy 05 Slush 06 Water (Standing/Moving) 07 Sand, Mud, Dirt 08 Oil																																	
103	Environmental Condition 01 Clear 03 Snow 05 Overcast 07 Blowing Snow 09 Severe Crosswinds 02 Rain 04 Fog/Smog/Smoke 06 Sleet/Hail/Freezing Rain 08 Blowing Sand/Dirt																																	
104	Total Number of Motor Vehicles Involved in Crash																																	
105	<table border="0"> <tr> <td>Crash Type</td> <td>with Other MV as First Event</td> <td>with Below as First Event</td> </tr> <tr> <td>01 Same Direction (Rear End)</td> <td>07 Left Turn / U Turn</td> <td>10 Overtaken</td> </tr> <tr> <td>02 Same Direction (Side Swipe)</td> <td>08 Backing</td> <td>11 Fixed Object</td> </tr> <tr> <td>03 Right Angle</td> <td>09 Encroachment</td> <td>12 Animal</td> </tr> <tr> <td>04 Opposite Direction (Head On, Angular)</td> <td></td> <td>13 Pedestrian</td> </tr> <tr> <td>05 Opposite Direction (Side Swipe)</td> <td></td> <td>14 Pedalcyclist</td> </tr> <tr> <td>06 Struck Parked Vehicle</td> <td></td> <td>15 Non-fixed Object</td> </tr> <tr> <td></td> <td></td> <td>16 Railcar-vehicle</td> </tr> </table>										Crash Type	with Other MV as First Event	with Below as First Event	01 Same Direction (Rear End)	07 Left Turn / U Turn	10 Overtaken	02 Same Direction (Side Swipe)	08 Backing	11 Fixed Object	03 Right Angle	09 Encroachment	12 Animal	04 Opposite Direction (Head On, Angular)		13 Pedestrian	05 Opposite Direction (Side Swipe)		14 Pedalcyclist	06 Struck Parked Vehicle		15 Non-fixed Object			16 Railcar-vehicle
Crash Type	with Other MV as First Event	with Below as First Event																																
01 Same Direction (Rear End)	07 Left Turn / U Turn	10 Overtaken																																
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06 Struck Parked Vehicle		15 Non-fixed Object																																
		16 Railcar-vehicle																																
106 Veh 1	Vehicle 1																																	
107 Veh 2	Vehicle 2																																	
108 Veh 1	Vehicle 1																																	
109 Veh 2	Vehicle 2																																	
110 Veh 1	Vehicle 1																																	
111 Veh 2	Vehicle 2																																	
112 Veh 1	Vehicle 1																																	
113 Veh 2	Vehicle 2																																	
114 Veh 1	Vehicle 1																																	
115 Veh 2	Vehicle 2																																	
116 Veh 1	Vehicle 1																																	
117 Veh 2	Vehicle 2																																	

State of New Jersey Police Crash Investigation Report (b) (6)

Use Code 00 for Unknown.

Use Code 99 for Other.

Explain Other in Crash Description

Also, Explain Items Marked with asterisk (*) in Crash Description

If an Item Does Not Apply, Enter a Dash (-)

NOTE:
Boxes 1 - 7 must be completed for all pages of the report.

Boxes 8-22 and 96-105 are only required on page 1 of the report.

All other information is completed as necessary.

Websites for :

Crash References -
<http://www.state.nj.us/transportation/refdata/accidents/policeres/shim>

Insurance Codes -
5 digit NAIC - <http://www.nj.gov/dobi/data/inscomp.htm>
3 digit MVC - <http://www.state.nj.us/mvc/numeric.pdf>

Hospital Codes
- <http://www.state.nj.us/health/ems/ems.pdf>

Overlay Page 1 of 2

Cut here 1 5/16" from bottom

Cutting at designated positions will permit arrows on each side to be displayed when the appropriate overlay is paged. It will also permit the first overlay to be slightly longer than the second for easy paging.

Printing should be done Portrait, Duplex, Flip on Short Edge

Cut here second 1 1/8" from left

State of New Jersey Police Crash Investigation Report NJTR-1

Use Code 00 for Unknown.

Use Code 99 for Other.

Explain Other in Crash
DescriptionAlso, Explain Items
Marked with asterisk (*) in
Crash DescriptionIf an Item Does Not Apply,
Enter a Dash (-)

Eye Color (box 30, 60)

1 - Black 4 - Blue
2 - Brown 5 - Hazel
3 - Gray 6 - Green
7, 8, and 9 = Other

Overlay Page 2 of 2

Cut here 1 9/16" from bottom

Apparent Contributing Circumstances			
Driver/Pedalcyclist Actions (01 - 29) 01 Unsafe Speed 03 Failed To Obey Traffic Control Device 04 Failed To Yield ROW to Vehicle/Pedes. 05 Improper Lane Change 06 Improper Passing 07 Improper Use/Failed to Use Turn Signal 08 Improper Turning 09 Following Too Closely 10 Backing Unsafely 11 Improper Use/No Lights 12 Wrong Way 13 Improper Parking 14 Failure To Keep Right 25 None 29 Other Driver/Pedalcyclist Action		Vehicle Factors (31 - 49) 31 Defective Lights * 32 Brakes * 33 Steering * 34 Tires * 35 Wheels * 36 Windows/ Windshield * 37 Mirrors * 38 Wipers * 39 Veh Coupling/Hitch/Safety Chains * 49 Other Vehicle Factor Road / Environ. Factors (51 - 69) 51 Road Surface Condition * 52 Obstruction/Debris In Road * 53 Ruts, Holes, Bumps * 54 Control Device Defective or Missing * 55 Improper Work Zone * 56 Physical Obstructions (viewing, etc) * 57 Animals in Roadway * 58 Improper/Inadequate Lane Markings * 59 Sun glare * 69 Other Roadway Factors	
		Pedestrian Factors (71 - 89) 71 Failed To Obey Traffic Control Device 72 Crossing Where Prohibited 73 Dark Clothing/Low Visibility to Driver 74 Inattentive * 75 Failure to Yield ROW 76 Walking on Wrong Side of Road 77 Walking in Road When Sidewalk Present 78 Running/Darting Across Traffic 85 None 89 Other Pedestrian Factors	
		Cell Phone In Use By Driver 01 Handheld 02 Hands Free	
Vehicle / Pedalcyclist Action (01-29) 01 Going Straight Ahead 02 Making Right Turn 03 Making Left Turn 04 Making U Turn 05 Starting From Parking 06 Starting In Traffic 07 Slowing or Stopping 08 Stopped in Traffic 09 Parking 10 Parked 11 Changing Lanes 12 Merging/Entering Tral Lane 13 Backing 14 Driverless / Moving 15 Passing 16 Negotiating Curve 17 Driving on Shoulder 18 Right Turn on Red 29 Other Veh/Cyclist Action *		Pedestrian Action (31-49) 31 Pedestrian Off Road 32 Walking To/From School 33 Walking/Jogging with Traffic 34 Walking/Jogging Against Traffic 35 Playing in Road 36 Standing/Lying/Kneeling in Road 37 Getting On/ Off Vehicle 38 Pushing/Working on Vehicle 39 Other Working in Roadway 40 Approaching/Leaving Schoolbus 41 Coming From Behind Parked Veh. 42 (reserved) 49 Other Pedestrian Action *	
01 Police Officer 02 RR Watchman, Gates, etc 03 Traffic Signal 04 Lane Markings		Traffic Controls 05 Channelization - Painted 06 Channelization - Physical 07 Warning Signal 08 Stop Sign 09 Yield Sign 10 Flagman 11 No Control Present 12 Flashing Traffic Control 13 School Zone (Signs/Controls) 14 Adult Crossing Guard	
Non Collision (01 - 19) 01 Overtum / Rollover 02 Fire / Explosion 03 Immersion 04 Jackknife 05 Ran Off Road - Right 06 Ran Off Road - Left 07 Crossed Median / Centerline 08 Downhill Runaway 09 Cargo / Equipment Loss or Shift 10 Separation of Units 11 Fell / Jumped From Vehicle 12 Thrown / Falling Object 13 Equipment Failure 19 Other Non Collision		Sequence of Events (select up to 4 for each vehicle) Collision w/ Person, MV, or Non-Fixed Object (21 - 39) 21 Pedalcyclist 22 Pedestrian 23 Train / Trolley / Other Railcar 24 Deer 25 Other Animal 26 MV In Transport 27 MV In Transport, Other Roadway 28 Parked MV 29 Work Zone or Maint. Equipment 30 Struck By Object Set In Motion By MV 39 Other Non-Fixed Object	
		Collision w/ Fixed Object (41 - 69) 41 Impact Attenuator / Crash Cushion 42 Bridge Overhead Structure 43 Bridge Pier or Support 44 Bridge Parapet End 45 Bridge Rail 46 Guardrail Face 47 Guardrail End 48 Concrete Traffic Barrier 49 Other Traffic Barrier 50 Traffic Sign Support 51 Traffic Signal Standard 52 Utility Pole 53 Light Standard 54 Other Post, Pole, Support 55 Culvert 56 Curb 57 Ditch 58 Embankment 59 Fence 60 Tree 61 Mailbox 62 Fire Hydrant 69 Other Fixed Object	
		Vehicle Impact Area 13 Roof 14 Undercarriage 15 Overturned 17 None Visible	

Cut here first 8 1/16" from left

5

ESIS/General Motors, LLC
P.O. Box 300
Mail Code 482 C19 B61
Detroit, MI 48265-3000
Sean.z.kelly@gm.com

800.888.0164 *tel*
313.665.0911 *fax*

Sean Kelly
Claims Administrator

March 12, 2010

[REDACTED]
Parsippany NJ [REDACTED]

RE: Claimant: [REDACTED]
 Our File No.: 680734
 Our Client: General Motors, LLC
 Date/Event: 11-3-09
 Vehicle: 2006 Saturn Ion 3

Dear Ms. [REDACTED]

We have completed our investigation into your Nov. 3, 2009 accident.

Based on all documentation received and reviewed, ESIS, on behalf of General Motors LLC, will not be in a position to honor your request for damages. If you have any additional evidence that supports your claim of a product defect, please forward it to my attention for further review.

Sincerely,

Sean Kelly

CDR File Information

User Entered VIN	1G8AL55F76Z [REDACTED]
User	John Keher
Case Number	680734
EDR Data Imaging Date	Friday, December 4 2009
Crash Date	Tuesday, November 3 2009
Filename	1G8AL55F76Z [REDACTED] ACM [REDACTED] CDR
Saved on	Friday, December 4 2009 at 08:19:57 AM
Collected with CDR version	Crash Data Retrieval Tool 3.3
Reported with CDR version	Crash Data Retrieval Tool 3.3
EDR Device Type	airbag control module
Event(s) recovered	Non-Deployment

IMPORTANT NOTICE: Robert Bosch LLC recommends that the latest production release of Crash Data Retrieval software be utilized when viewing, printing or exporting any retrieved data from within the CDR program. This ensures that the retrieved data has been translated using the most recent information including but not limited to that which was provided by the manufacturers of the vehicles supported in this product.

Data Limitations

Recorded Crash Events:

There are two types of Recorded Crash Events. The first is the Non-Deployment Event. A Non-Deployment Event records data but does not deploy the air bag(s). It contains Pre-Crash and Crash data. The SDM can store up to one Non-Deployment Event. This event may be overwritten by another Non-Deployment Event. This event will be cleared by the SDM, after approximately 250 ignition cycle. This event can be overwritten by a second Deployment Event, referred to as a Deployment Level Event, if the Non-Deployment Event is not locked. The data in the Non-Deployment Event file will be locked, if the Non-Deployment Event occurred within five seconds before a Deployment Event. A locked Non Deployment Event cannot be overwritten or cleared by the SDM. The second type of SDM recorded crash event is the Deployment Event. It also contains Pre-Crash and Crash data. The SDM can store up to two different Deployment Events, if they occur within five seconds of one another. If a Deployment Level Event occurs within five seconds after the Deployment Event, the Deployment Level Event will overwrite any non-locked Non-Deployment Event. Deployment Events cannot be overwritten or cleared by the SDM. Once the SDM has deployed an air bag, the SDM must be replaced.

Data:

- SDM Recorded Vehicle Longitudinal Velocity Change reflects the change in longitudinal velocity that the sensing system experienced during the recorded portion of the event. SDM Recorded Vehicle Longitudinal Velocity Change is the change in velocity during the recording time and is not the speed the vehicle was traveling before the event, and is also not the Barrier Equivalent Velocity. For Deployment Events, the SDM will record 100 milliseconds of data after deployment criteria is met and up to 50 milliseconds before deployment criteria is met. For Non-Deployment Events, the SDM can record up to the first 150 milliseconds of data after algorithm enable. Velocity Change data is displayed in SAE sign convention.
- Event Recording Complete will indicate if data from the recorded event has been fully written to the SDM memory or if it has been interrupted and not fully written.
- SDM Recorded Vehicle Speed accuracy can be affected by various factors, including but not limited to the following:
 - significant changes in the tire's rolling radius
 - final drive axle ratio changes
 - wheel lockup and wheel slip
- Brake Switch Circuit Status indicates the open/closed state of the brake switch circuit.
- Pre-Crash data is recorded asynchronously.
- Pre-Crash Electronic Data Validity Check Status indicates "Data Invalid" if:
 - the SDM receives a message with an "invalid" flag from the module sending the pre-crash data
 - no data is received from the module sending the pre-crash data
 - no module present to send the pre-crash data
- Driver's Belt Switch Circuit Status indicates the status of the driver's seat belt switch circuit. If the vehicle's electrical system is compromised during a crash, the state of the Driver's Belt Switch Circuit may be reported other than the actual state.
- The Time between Non-Deployment to Deployment Events is displayed in seconds. If the time between the two events is greater than five seconds, "N/A" is displayed in place of the time.
- If power to the SDM is lost during a crash event, all or part of the crash record may not be recorded.
- All data should be examined in conjunction with other available physical evidence from the vehicle and scene.

Data Source:

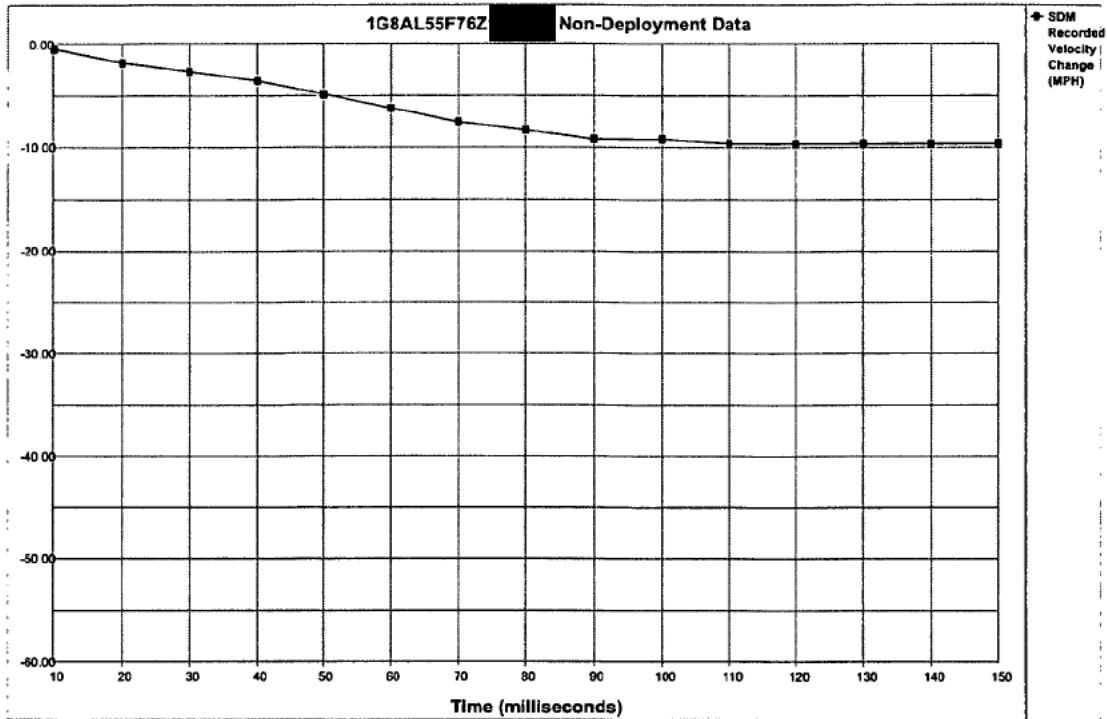
- All SDM recorded data is measured, calculated, and stored internally, except for the following:
 - Vehicle Speed, Engine Speed, and Percent Throttle data are transmitted once a second by the Powertrain Control Module (PCM), via the vehicle's communication network, to the SDM.
 - Brake Switch Circuit Status data is transmitted once a second by either the ABS module or the PCM, via the vehicle's communication network, to the SDM. Depending on vehicle option content, the Brake Switch Circuit Status data may not be available.
 - The SDM may obtain Belt Switch Circuit Status data a number of different ways, depending on the vehicle architecture. Some switches are wired directly to the SDM, while others may obtain the data from various vehicle control modules, via the vehicle's communication network.

System Status At Non-Deployment

SIR Warning Lamp Status	OFF
Driver's Belt Switch Circuit Status	BUCKLED
Passenger Belt Switch Circuit Status (If Equipped)	UNBUCKLED
Driver Seat Position Status (If Equipped)	Forward
Passenger Seat Position Status (If Equipped)	Forward
Ignition Cycles At Non-Deployment	7396
Ignition Cycles At Investigation	7639
Maximum SDM Recorded Velocity Change (MPH)	-9.78
Algorithm Enable to Maximum SDM Recorded Velocity Change (msec)	45
A Deployment was Commanded Prior to this Event	No
Event Recording Complete	No

Seconds Before AE	Vehicle Speed (MPH)	Engine Speed (RPM)	Percent Throttle
-5	41	704	0
-4	41	640	0
-3	41	16320	0
-2	40	1152	0
-1	40	1152	0

Seconds Before AE	Brake Switch Circuit Status
-8	OFF
-7	OFF
-6	OFF
-5	OFF
-4	ON
-3	ON
-2	ON
-1	ON



Time (milliseconds)	10	20	30	40	50	60	70	80	90	100	110	120	130	140	150
SDM Recorded Velocity Change	-0.44	-1.76	-2.63	-3.51	-4.83	-6.14	-7.46	-8.34	-9.21	-9.21	-9.65	-9.65	-9.65	-9.65	-9.65

Hexadecimal Data

Data that the vehicle manufacturer has specified for data retrieval is shown in the hexadecimal data section of the CDR report. The hexadecimal data section of the CDR report may contain data that is not translated by the CDR program. The control module contains additional data that is not retrievable by the CDR system.

```
$01 A0 3B 00 00 00 00
$02 AB C7 00 00 00 00
$03 41 53 35 32 36 39
$04 4B 33 39 4B 55 31
$05 02 41 00 00 C3 00
$06 22 72 57 28 00 00
$10 FC 45 80 00 00 00
$11 98 00 00 00 00 84
$12 60 00 FF FF 00 00
$13 0A 00 00 00 00 00
$14 F3 04 ED 05 50 00
$18 84 83 84 4B FF 00
$1C 38 FA 41 FA FA FA
$1D FA 38 FA 41 FA FA
$1E FA FA 00 00 00 00
$1F 00 05 00 00 00 00
$20 40 00 00 7D 80 00
$21 FF FF FF FF FF FF
$22 FF FF FF FF 00 00
$23 01 04 06 08 0B 0E
$24 11 13 15 15 16 16
$25 16 16 16 00 00 00
$26 40 41 42 42 42 F0
$27 00 00 00 00 00 00
$28 12 12 FF 0A 0B 00
$29 FC 63 F0 00 00 00
$2A 00 00 00 00 00 00
$2B 00 00 00 00 00 00
$2C 00 00 FF 29 02 CA
$2D 00 00 00 00 00 00
$2E 00 00 22 00 00 00
$30 FF FF FF FF FF 00
$31 FF FF FF FF FF FF
$32 FF FF FF FF 00 00
$33 FF FF FF FF FF FF
$34 FF FF FF FF FF FF
$35 FF FF FF FF FF FF
$36 FF FF FF FF FF FF
$37 FF FF FF FF FF FF
$38 FF FF FF FF FF 00
$39 FF FF FF FF FF FF
$3A FF FF FF FF FF 00
$3B FF FF FF FF 00 00
$3C FF FF FF FF FF FF
$3D FF FF FF FF 00 00
$3E FF FF FF 00 00 00
$40 FF FF FF FF FF 00
$41 FF FF FF FF FF FF
$42 FF FF FF FF 00 00
$43 FF FF FF 00 00 00
$44 FF 00 00 00 00 00
$50 00 00 00 00 05 08
$51 12 FF 00 00 00 00
$60 FF FF FF FF FF FF
$61 FF 00 00 00 00 00
```

Comments

Downloaded through the DLC
Air bag lamp flashed seven times and went out upon keyed power up
Air bags have not deployed
Vehicle has been repaired
Odometer 29977
Vehicle downloaded at 145 Harrison Rd in Parsippany, NJ
Power supplied via vehicle battery

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The users of the CDR product and reviewers of the CDR reports and exported data shall ensure that data and information supplied is applicable to the vehicle, vehicle's system(s) and the vehicle ECU. Robert Bosch LLC and all its directors, officers, employees and members shall not be liable for damages arising out of or related to incorrect, incomplete or misinterpreted software and/or data. Robert Bosch LLC expressly excludes all liability for incidental, consequential, special or punitive damages arising from or related to the CDR data, CDR software or use thereof.